

A.1.2

Policy/Guideline Title:	Disclosure of Criminal Background (Including Rehabilitation of Offenders Act) Policy		
Executive Summary:	We check criminal records to protect our patients. In doing this, this policy sets the balance of the need to prevent unsuitable people from working in sensitive posts, against the threat of discrimination against rehabilitated ex-offenders.		
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Financial Implications:			
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Appendix

1. Introduction

The Disclosure and Barring Service (DBS) was formed by the merger of the Criminal Records Bureau (CRB) and the Independent Safeguarding Authority in December 2012.

We have a legal responsibility to:

- Undertake DBS disclosure checks in line with DBS guidance in applying eligibility to NHS roles. A standard DBS check is used primarily for posts that involve regular contact with children or vulnerable adults. For those posts that involve a greater degree of contact with children or vulnerable adults i.e., the type of work that involves undertaking regulated activity and those supervising or managing regulated activity will require an enhanced DBS check.
- Consider the Rehabilitation of Offenders Act 1974 which helps rehabilitated ex-offenders back into work by allowing them not to declare criminal convictions and cautions (including reprimands and final warnings) to us after the defined rehabilitation period has elapsed and the convictions become "spent" (old).

Disclosure checks are made the prior to appointment to the trust and rechecked every three years or at the point in time that they change roles within the Trust, where the DBS required level has changed.

2. Purpose

The role of the DBS is to help us make safer recruitment decisions for jobs working with vulnerable groups including children. We do this to protect our patients. In doing this, we balance the need to prevent unsuitable people from working in sensitive posts, against the threat of discrimination against rehabilitated ex-offenders.

3. Responsibilities

Responsibilities of All Employees:

- To inform their line manager immediately with anything that may appear on a disclosure.
- To inform their line manager should, during employment, they be subject to any criminal investigation.
- To co-operate with the management of the Trust in looking into any matters of concern regarding their disclosure check.
- All newly employed staff or staff who change roles as part of recruitment process (from 01 February 2019) to pay for disclosure application or subscription to DBS update service, if required for the role.
- To adhere to the requirements and purpose of this policy and procedure.
- To book and attend scheduled appointments to complete disclosure applications in a timely manner.

Responsibilities of Managers:

- To seek advice from HR on all matters associated with disclosure checks to ensure application of good practice and adherence with NHS Employers requirements and relevant legislation.
- To apply this policy in a fair and consistent manner including investigations dealing with disclosure issues in sensitive and confidential manner and appropriately documented and recorded.
- To ensure that members of the team are allowed time to book and attend scheduled appointments to complete disclosure applications in a timely manner.
- In all instances if an employee allows their DBS Update Service registration to lapse then they will be responsible for the full cost of re-registering with the DBS Update Service and for a new DBS Check.

Responsibilities of Human Resources:

- To facilitate appointments for applicants and employees to complete disclosure applications in a timely manner.
- To undertake disclosure checks for all new starters where the role requires.
- To undertake disclosure checks for all existing employees who have not previously had a check.
- To undertake checks on all staff required to have a disclosure every 3 years as a minimum or where they have change roles within the Trust, where the DBS required level has increased.
- To provide professional advice and guidance to all managers on the application of this policy, good practice in recruitment and any associated legislation.
- To provide training for managers on the application of this policy as part of management development programmes e.g., Recruitment and Selection training.
- To provide information for line managers on disclosure checks for their staff as required.
- To undertake regular checks and audits to ensure compliance with this policy.
- Assist managers in managing the process.
- Treat all matters related to recruitment and disclosure checks with impartiality and confidentiality and according to NHS Employers requirements and current legislation.
- To ensure that the procedure below is adhered to.

4. Definitions**DBS Check**

DBS checks are carried out by the Disclosure and Barring Service, also known as DBS. A DBS check is a record of a person's criminal convictions and cautions.

5. Recruitment Stage

All posts requiring a DBS Check will be clearly referred to in the advertisement for the post and all offers of employment will be made on condition of receipt of a satisfactory disclosure at the appropriate level for any post where one is required.

The following principles will apply:

- Only the applicant successful at interview will be required to complete the online DBS application documentation.
- Prospective employees will be advised of the level of DBS Check required and of the requirement to subscribe to the DBS Update Service throughout their employment with the Trust.
- All applicants will be required to complete a declaration form as part of the preemployment check process with regards to the DBS.
- New employees will be required to produce their disclosure certificate to the Recruitment Team to allow a check for authenticity and, in cases of a positive disclosure in order for a full risk assessment to be completed.
- A conditional offer cannot be confirmed until all the appropriate information has been received / considered.
- New starters are required to pay for the DBS which will be deducted from their first pay.
- New starters are required to sign up to the DBS subscription service.

5.1 Starting work before the return of a satisfactory disclosure

A prospective employee will not be allowed to start working in a 'regulated activity' prior to a satisfactory disclosure being received. In exceptional circumstances where health safety and welfare of staff and/or patients may be affected then a risk-based assessment should be made using the relevant risk assessment form and as a minimum the following must apply:

- DBS disclosure applied for
- Individual is not working with children
- Safeguards are put in place to manage that individual

Where an individual is not engaged in a 'regulated activity' but has access to patients in the normal course of their duties, then a risk based assessment should be undertaken using the relevant risk assessment form and signed by an authorised person and the individual to confirm they are aware of any restrictions on their role and held on this should be held on file until the DBS Check has been provided.

6. Existing Employees / Changing Jobs within the Same Trust

A new DBS Check is not always required where an existing member of staff moves jobs within the Trust and their roles and responsibilities and level of contact with that vulnerable group has not significantly changed. The trigger for a new check is:

- The employee has never had a DBS check before and is moving to a position that now requires a check (the level of check is dependent on the roles and responsibilities of the job).
- The employee has previously had a standard level check and is now moving into a regulated activity, which requires them to have a higher-level disclosure.
- The new position requires the employee to work with a different vulnerable group and they are required to have a check against one or both barred lists.
- There has been a break of service for more than three months between leaving the old position and taking up the new position.
- If they have not had a DBS check within the last 3 years.
- They are not currently registered with the DBS Up-date Service.

If an employee is arrested, charged, cautioned or convicted of any criminal offence; they have a contractual obligation to notify the circumstances to their Line Manager as soon as possible. This includes any pending court appearance, bind-overs, absolute and conditional discharges. Failure to do so will result in formal action being taken under the Trust's Disciplinary Policy and may result in termination of employment. In addition, the nature of the offence may also result in disciplinary action being taken by the Trust.

7. Doctors on educationally approved rotational training schemes

Doctors on educationally approved rotational training schemes are considered as being in continuous employment and are therefore required to have a DBS Check every three years, as opposed to each time they rotate to a new Trust. Doctors will be required to produce their current disclosure certificate to the Recruitment Team to allow a check for authenticity and, in cases of a positive disclosure in order for a full risk assessment to be completed. The level of disclosure will also be checked to ensure the level is correct for the area of work at the Trust.

8. Temporary workers supplied by an agency

Where agency workers are engaged in a role that requires them to have a valid DBS Check then evidence of this check will be required prior to their assignment commencing in the Trust. Agency workers are required to have a DBS Check once a year.

The above requirement does not apply to those engaged on the Trust Staff Bank who hold a substantive contract with the Trust however should they leave the Trust or where there is a break in service of three months or more prior to them applying for a post on the Trust Staff Bank then a new DBS check will be required.

9. Students/Trainees

DBS Checks will apply to students who, as part of their professional qualification, are required to carry out a clinical placement. The requirement to check and the level of

check is dependent on whether their placement involves them working with children and/or adults and the roles and responsibilities of that placement. Many students/trainees will be required to move frequently to new placements during their training, so it is recommended that they have a DBS Check at the start of their training course, rather than each time they move to a new placement.

Where there is a delay in obtaining a disclosure, students may take up their placement providing they are fully supervised, and patients are not exposed to unacceptable risks.

10. Staff Recruited from Overseas

Where the position meets the criteria for a DBS check, even in the prospective employee claims they have never lived in the UK before, a DBS Check should still be obtained in addition to their overseas criminal records to verify that they have no criminal history in the UK.

11. Positive disclosures; or withholding a disclosure

Certificates are issued only to the prospective employee or employer. In circumstances where a positive disclosure is issued, the employee or prospective employee will be required to produce the original Disclosure certificate to the Recruiting Manager/ Line manager. The positive disclosure will be investigated, and an outcome will be recorded in Electronic Staff Record (ESR).

Where an employee or prospective employee fails to provide sight of the positive disclosure certificate, when reasonably requested to do so, without justifiable reason, then any offer of employment will be withdrawn or, in the case of an existing employee they may be removed from their post, pay suspended and formal action being taken under the Trust's Disciplinary Policy, which may result in termination of employment.

12. Training

There is no mandatory training associated with this policy. Individuals' training needs will be identified through annual appraisal and supervision.

13. Monitoring Compliance with the Document

Monitoring Compliance					
Process to be used for monitoring e.g. audit	Responsible individual / committee for carrying out monitoring	Frequency of monitoring	Responsible individual / committee for review the results	Responsible individual / committee for developing action plan	Responsible individual / committee for monitoring action plan

Review of withdrawn offers	Head of People Planning	Annual	JCNC	Head of People Planning	People Committee
Review of DBS checks	Head of People Planning	Annual	JCNC	Head of People Planning	People Committee

14. References

Disclosure and Barring Code of Practice
 Recruitment and selection policy
 Disciplinary Policy
 NHS Employers Employment Check Standards
 Disclosure and Barring Applying Eligibility to NHS roles